

the City's exposure; rather, the scope of potential relief was limited by this Court's prior rulings on demurrers. Consequently, the City's existing general appearances remained effective to prevent the entry of default.

Petitioner opposes the motion by arguing that an amended pleading supersedes prior pleadings for all purposes and that the City's previous demurrers were "spent." Petitioner's reliance on *Bristol Convalescent Hospital v. Stone* (1968) 258 Cal.App.2d 848 as support for the validity of the default is unavailing and misplaced. As noted in the City's reply, *Bristol* is consistent with the principle that defaults may be set aside where a prior appearance sufficed to join issue.

Furthermore, Petitioner's argument that the TAP rendered the City's prior appearances a nullity is misplaced. The California Supreme Court in *Gray v. Hall* (1928) 203 Cal. 306 explicitly rejected the notion that a default may be taken for failure to answer an amended complaint when a previous answer or plea remains on file that sufficiently sets forth the defense. Because the City had appeared and its jurisdictional defenses remained applicable, the clerk was without authority to enter the default.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2602881	FRANKLIN vs OROZCO	DEMURRER ON COMPLAINT

Tentative Ruling: Hearing is continued to 9/14/26.

CCP § 430.41 and § 435.5 require a meet and confer process via phone or in person before filing a demurrer or motion to strike five days before the responsive pleading is due. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (CCP § 430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (CCP § 430.41(a)(3).)

Defendant states that she sent an email to Plaintiff's counsel on 6/15/26 requesting to confer regarding filing a demurrer on the 1st, 4th, 5th, and 6th Causes of action, and subsequently asked for a response. Defendant states she did not receive a reply. (Howe Decl. ¶¶ 3-4). This is insufficient to satisfy the requirement of CCP § 430.41(a).

Defendant is ordered to meet and confer with Plaintiff by telephone for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet and confer process, Defendant shall identify with legal support the basis of the alleged deficiencies in the subject pleadings. Plaintiff shall provide legal support for his position that the pleadings are legally sufficient or, in the alternative, how they may be further amended to cure any legal insufficiencies.

After meeting and conferring, Defendant shall, 10 days before the continued hearing date set forth above, do one of the following:

- (1) Vacate the hearing on the demurrer;
- (2) File with the Court a declaration stating the parties have agreed that Plaintiff will file an amended pleading before the date set forth above; or

- (3) File with the Court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer, and supporting memorandum of points and authorities that the parties were unable to resolve.

The Court will not accept further briefing.